

24STCV34421 24STCV34421

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Case Number: 24STCV34421 Hearing Date: August 24, 2026 Dept: 406

MICHAEL THOMAS,

Plaintiff,

v.

VOLKSWAGEN GROUP OF AMERICA, INC., et

al.,

Defendants.

Case No.: 24STCV34421

Hearing Date: August 24, 2026

[TENTATIVE]

order RE:

defendants' motion for judgment on the
pleadings

BACKGROUND

On December 30, 2024, Plaintiff

Michael Thomas filed this action against Defendants Volkswagen Group of America, Inc. (VGA) and Volkswagen of Downtown Los Angeles (Dealer). The complaint asserts claims for violation of the Song-Beverly Act, breach of warranty, negligent repair, and fraudulent concealment.

On July 20, 2026, Defendants filed the instant motion for judgment on the pleadings. Plaintiff filed an opposition on August 11, 2026. Defendants filed a reply on August 17, 2026.

LEGAL STANDARD

A motion for judgment on the pleadings may be made on the same grounds as those supporting a general demurrer, i.e., that the pleading fails to state facts sufficient to constitute a legally cognizable claim or defense. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650.) A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. (*Cloud v. Northrop Grumman Corp.* (1999) 67 Cal.App.4th 995, 999.) Judgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution. (*Schabaram v. Calif. Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

DISCUSSION

I.

Sale of Vehicle

Defendants argue that the Song-Beverly claims fail because Plaintiff does not allege that he purchased or leased the subject vehicle. However, the complaint alleges that “Plaintiff is a ‘buyer’ of consumer goods under the Act.” (Compl. ¶ 12.) This is a sufficient ultimate fact. Whether Plaintiff actually purchased or leased the subject vehicle is a matter of proof, not pleading.

II.

Negligent Repair

a. Factual Sufficiency

The elements of negligence are: (1) a duty to exercise ordinary care; (2) breach of that duty; (3) causation; and (4) damages. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) “Ordinarily, negligence may be pleaded in general terms and the plaintiff need not specify the precise act or omission

alleged to constitute the breach of duty.” (Lopez v. Southern Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795.)

Here, the complaint alleges that

Dealer “owed a duty to Plaintiff to use ordinary care and skill in storage, preparation, and repair of the Subject Vehicle in accordance with industry standards.” (Compl. ¶ 48.) Dealer allegedly failed to “properly store, prepare, and repair of the Subject Vehicle in accordance with industry standards.” (Id., ¶ 49.) As a result, Plaintiff was allegedly damaged. (Id., ¶ 50.) These allegations sufficiently state a cause of action for negligence. The demurrer demands evidentiary detail not required for pleading.

b. Economic Loss Rule

Economic loss consists of “damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property.” (Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988.) The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless the purchaser “can demonstrate harm above and beyond a broken contractual promise,” such as some form of personal injury or damage to property other than the defective product itself. (Ibid.) The economic loss rule exists to prevent “the law of contract and the law of tort from dissolving one into the other.” (Ibid.) “An omission to perform a contract obligation is never a tort, unless that omission is also an omission of a legal duty.” (Erlach v. Menezes (1999) 21 Cal.4th 543, 551.)

Here,

the negligent repair claim alleges that Dealer “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards.” (Compl. ¶ 49.) The complaint does not indicate that Plaintiff and Dealer entered into any contract governing repairs or repair quality. The failure to perform repairs in accordance with industry standards is a standalone breach of duty untethered to any contract. Therefore, the negligent repair claim is not barred by the economic loss rule.

III. Fraudulent Concealment

Under

the economic loss rule, “[a] plaintiff may assert a fraudulent concealment cause of action based on conduct occurring in the course of a contractual relationship if the elements of the claim can be established independently of the parties’ contractual rights and obligations, and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the contract.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 13.)

In this case,

Plaintiff has not alleged that he suffered any physical injury or that there was any damage to property other than to the subject vehicle. Thus, Plaintiff has alleged only economic loss. Plaintiff has not alleged a breach of duty beyond contractual obligations. The fraud claim is premised on VGA’s failure to provide a vehicle free of defects, which is a breach of warranty. In other words, the fraud claim cannot be “established independently of the parties’ contractual rights and obligations.” (See Rattagan, supra, 17 Cal.5th at p. 13.) Therefore, the fraudulent concealment claim is barred by the economic loss rule.

Moreover, a duty

to disclose only arises in “direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bjoin v. J-M Manufacturing Co., Inc. (2025) 113 Cal.App.5th 884, 902.) Here, the complaint fails to allege any direct dealings between Plaintiff and VGA. “[Plaintiff] did not transact with [VGA] in any way.” (Id. at p. 903.) The fraudulent concealment claim fails for this independent reason.

CONCLUSION

Defendants’

motion for judgment on the pleadings is GRANTED as to the sixth cause of action without leave to amend and OVERRULED in all other respects.